THE STATE

Versus

FRANK CHAFAUSIPO

HIGH COURT OF ZIMBABWE
MUZOFA & BACHI MZAWAZI JJ
CHINHOYI, 6 March 2026

Criminal Review

[1] BACHI MZAWAZI J: The accused was charged and convicted of one count of rape of a minor aged approximately 20 to 30 months according to the expert age estimation report. The facts are that he was found with his trousers unzipped and his male organ popping out whilst sleeping side by side by the minor child.

[2] The victim is said to have been also without panties but dressed. The first eye witness, the victim's sister, claimed to have seen the two lying side by side but with the accused's male organ on the complainant's sexual organ. In contrast, an independent witness said though she saw the accused sleeping in a drunken stupor with the victim next to him, she did not see both their private sexual parts exposed. She did notice the accused's zip open but did not see anything beyond that. She also confirmed that the child's pants were outside but the child was in a sitting position when she came onto the picture.

[3] In her later version to the court, the first witness also changed versions saying, when she went back to the house in order to collect her phone so that she photo-capture the crime, she found her sister, the minor seated as described by the second witness. Both witnesses testified that the accused is a known alcohol abuser who was very drunk and sleeping at the time he was accosted for the alleged offence.

[4] From the onset, the accused's defence was to the effect that he did not recall anything as he was extremely intoxicated. He was an honest witness to the extent that he never tried to

conceal or exaggerate anything. He said if those were the allegations then so be it, because he did not know what happened? Because of this ignorance or failure to recollect, it is apparent that, he could neither deny or cross examine the witnesses.

[5] This is what the trial court was faced with in the undefended trial. The medical evidence did not show any proof of direct penetration. The hymen was intact. No injuries of forced penetration were observed. However, the affidavit showed some redness on the vestibule. This was interpreted as legal penetration leading to the rape conviction. He had been charged and convicted in terms of s65 of the (Criminal Law Codification and Reform) Act [*Chapter 9:23].* He was sentenced to an effective 18 years imprisonment sentence.

[6] What needs to be proved in rape offences is the evidence of penetration even of the slightest degree, by a man with his sexual organ, on the sexual organ of a woman. With legal penetration, some case law points to the proximity of the male organ on the female organ as sufficient to conclude penetration.

[7] In *S v Mhanje* 2000(2) ZLR20(H) it was noted that, for rape to take place it is not necessary that there should be full penetration. The slightest degree of penetration will suffice. The legal definition of penetration, according to *Black's Law Dictionary*, is

> "The insertion of the male part into the female parts to however slight an extent, by which insertion the offense is complete without proof of emission".

[8] In the case of *Torongo* SC 206-96, it was held that:

> "As far as the law is concerned, placing the male organ at the orifice of the female organ, resulting in the slightest penetration constitutes rape."

See, cases cited in the unreported case of *S v Jenami* HC*24/23.*

[9] Like in any criminal offence unless specifically excluded by statute, the State bears the burden to prove beyond a reasonable doubt each essential element of the crime charged. In rape

cases, the absence of consent must be proved in instances where the victims are those capable of consenting. To those legally incapable of consenting like 12-year-olds and those below 18, then lack of consent is inferred by the operation of the law.[1]

[10] Section 65 Rape

(1) If a male person knowingly has sexual intercourse or anal sexual intercourse with a female person and, at the time of the intercourse–

(a) the female person has not consented to it; and

(*b*) he knows that she has not consented to it or realises that there is a real risk or possibility that she may not have consented to it;

he shall be guilty of rape and liable(emphasis)

[11] What is striking, in the description of the offence of rape above is the mental element, knowingly *viz a viz* the undisputed facts of this case. Whilst, the essential elements of the statutory lack of consent of the minor are beyond contest, two questions remain lingering. Firstly, did the State prove beyond a reasonable doubt penetration, legal or otherwise? Secondly, did the accused commit the alleged offence in his inebriated state?

[12] Factual evidence

An analysis of the factual evidence makes it reasonably improbable for a grown man to sleep side by side by a child of plus or minus four years with both their organs touching each other. It is visually incomprehensible. Further, the description of the scene of crime is that of an open public makeshift toilet readily available and accessible to any members of that community. Why would a four-year child then sleep or eventually fall asleep in such a place without anyone noticing?

[13] Whilst the second witness's evidence is more credible, the first witness's evidence is not. It is the first witnesses' evidence of the side by side and organs meeting that we critique. She

[1] S64 and s70 of the Criminal law code protects children below the ages of 18 as incapable of consenting in diverse situations respectively.

prevaricated on page 6 of the record, that the male organ was only peeping and not in touch with that of the victim. Yet she had initially said that the male organ was on the female one. See, *Mupfudza v S* 1982 (1) ZLR271(S), which speaks to the likelihood of exaggerations and falsehoods in cases such as this one.

[14] In reality, for those who passed through the phases of being small girls growing up in areas where an outside toilet is shared, it is not uncommon for children once pressed by the call of nature, to remove their pants outside the building for a quick dash to relieve themselves. It cannot be eliminated that the first witness truly walked in when the child was present in the toilet without her panties but had found it already occupied by a sleeping drunkard at that time. The racy suspicious mind of the mature girl then made conclusions.

[15] The evidence of the victim was very crucial to clarify this point. No reasonable explanation is given on the record why the child did not give evidence to both the police and the court. Experience in this jurisdiction, has it that children of the same age do give evidence in camera with the aid of dolls. In view of this fact, there is doubt that is created especially in the face of the evidently witnessed drunkenness of the accused when confronted by both witnesses and the crowd.

[16] It is also important to note that the first witness, lied that the accused did not respond to the interrogations by members of the public but only did so when informed that a police report was about to be made. This was denied by the second witness who said accused did not respond to the allegations when awoken also through and through.

[17] This illustrates that the first witness's lack of consistency in such serious allegations means she was not a credible witness.

[18] Legal evidence

It has already been mentioned that the medical report spoke to some redness on the vestibule, that is the cavity or canal to the entrance of the female organ, vagina which is consistent

with interference but does not establish penetration. Rape as stated earlier on, requires proof of penetration as per the authorities cited above. The medical report states that penetration is *"inconclusive but possible."* It is trite that if the medical findings do not conclusively establish penetration, then the prosecution must rely on a witness's testimony to bridge that gap. An analysis of the factual evidence shows that the witness evidence has failed to plug that void.

[19] The redness, in itself cannot be conclusive evidence of a then recent occurrence. It creates some doubts. There was need to link the redness to recent friction or otherwise. Further, there was no conclusive evidence to impute the redness on sexual interference alone. The manner in which the victim cleanses herself after visiting the toilet is of significance. Some use, leaves, some mealie cob shells and some old dry newspaper or anything dispensable at their disposal. It cannot be eliminated that any of the methods used for hygiene or cleansing purposes or even the tightness of the tights that the child sleep in, could be contributory to or may have caused the redness.

[20] Again, the child was examined more or less the same day before any washing or change of clothes. If such redness had been caused by a male organ, then known lubricants from the male organ, known as seminal fluids should have been easily locatable in the same area. This is where our rape medical examinations usually fall short. They are not thorough and conclusive. Medical terms are thrown in and relied on without interrogation or clarifications from experts who compile them. For example, an 'oestrogenised' hymen does not necessarily conclude or refer to sexual interference.

[21] Had the accused been legally represented these weaknesses of the State evidence will have been exposed. I believe this is the main gist of automatic review in cases where legal representation lacked, to see to it that ends of justice are met. These observations where well-articulated in *S v Bvuto* HH94/18, amongst others.

[22] Lastly, if a person has been, colloquially, lights out, intoxicated, through the alleged commission of an offence can the State be said to have proved the requisite *mens re*a to commit the offence beyond a reasonable doubt?

[23] Understandably, voluntary intoxication is not a defence in this jurisdiction, but in an offence of this nature, lack of knowledge backed or which is supported by evidence does speak volumes towards the finding of guilty or not guilty of the culprit.[2]

[24] I find the observations by BERE and HUNGWE JJ on appeal in S *v Mutizwa* HH 302/2015 apposite. They commented:

> But the court took the claim by the complainant's mother that the vaginal orifice was wider than usual as fact and found corroboration of this fact in the presence of a black spot in the child's privates. As I pointed out, the basis of such findings was totally flawed as there were other reasonable inferences arising from the presence of the black spot. One piece of evidence which ought to have put the court on the alert was the claim by the child that appellant had finished with her when her mother called her on the second count where she claimed the poking occurred outside the bed-room and that if the mother was clever, she could have peeped through the window and would have seen him in the act. If indeed this occurred, why did she not alert her mother whom she knew to be inside the house? Clearly, complainant was "clever". She could equally have been suggestible regarding what she would say in court. This possibility was not excluded. Complainant's mother has an interest to serve and her evidence ought to have been regarded with caution. The trial court ought to have warned itself of the real possibility that she was bent on speaking for her daughter and sought for corroboration of her evidence in that regard. See *S* v *Banana* 2000 (1) ZLR 607

[25] This court in *S v Chisango S* v *Chisango* HCC 36-23, the Court held as follows:

> "We are of the view that, in rape and serious cases attracting sterner penalties, courts should not convict on stretched evidence. The benefit of the doubt should go to the appellant. Whilst it is respected that the factual findings of the trial court should ordinarily not be interfered with but in the interest of justice. We are also of the opinion that the interest of justice favoured that the benefit of doubt be accorded to the accused. See *S-v-Kombayi HH27/04. Michael Gwanzura-v-The State SC66/91."*

[2] Section 216 of the Criminal law Code, speaks to involuntary actions in the determination of the mental element in an offence. Section 222 of the same, qualifies the effect of voluntary intoxication on crimes that needs the requisite *mens rea.*

[26] The State failed to prove its case circumstantially or directly be yond a reasonable doubt. We have discredited that the interpretation read into the mere presence of the sleeping drunkard with his zipper open and that of the child with no panties on in a makeshift toilet as conclusive circumstantial evidence of rape. Nor the redness on the vestibule of the child. There was need for more evidence which excluded the innocence of the accused. Hence, it is clear that the review court should not uphold a rape conviction on inconclusive and contradictory evidence.

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[27] In *S v Mapfumo and Others* 1983 (1) ZLR 250 (SC), it was held that,

> "There is no onus on an accused person to establish his defence. Once there is some evidence suggesting a defence the court must consider this defence."

Accordingly,

It is ordered that,

a. The decision of the court *a quo* is set aside and substituted with not guilty and acquitted.
b. A warrant of liberation is forthwith issued

Muzofa J Agrees